



U.S. Customs and Border Protection

PUBLIC VERSION

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Re: Notice of Initiation of Investigation and Interim Measures - EAPA Cons. Case 7737

To the Counsel and Representatives of the above-referenced entities:

This letter is to inform you that U.S. Customs and Border Protection (CBP) has commenced a formal investigation under Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, commonly referred to as the Enforce and Protect Act (EAPA), against Gorilla Paper, Inc. and Gorilla Supply (collectively, Gorilla Paper).¹ CBP is investigating whether Gorilla Paper evaded antidumping duty (AD) orders A-428-850 (Germany) and A-580-911 (South Korea) on thermal paper.² CBP has found that reasonable suspicion exists that Gorilla Paper entered covered merchandise into the customs territory of the United States through evasion, and CBP has imposed interim measures.³

¹ See 7737 Letter from the PRCA, "Duty Evasion and False Country of Origin Allegation Against Gorilla Paper, Inc, An Importer Of Thermal Paper From The Republic of Korea and Germany, Pursuant To The Enforce and Protect Act," dated June 13, 2022, (7737 Allegation) and 7738 Letter from the PRCA, "Duty Evasion and False Country of Origin Allegation Against Gorilla Paper, Inc, An Importer Of Thermal Paper From The Republic of Korea and Germany, Pursuant To The Enforce and Protect Act," dated June 13, 2022, (7738 Allegation) (collectively, the Allegations at 3. The president, secretary, and agent for Gorilla Paper is listed as Su Chang Lim, and both Gorilla Paper Inc. and Gorilla Supply, among others, are trademarks registered to Su Chang Lim. See Allegations at 3-4 and Exhibits 3-4.

² See *Thermal Paper from Germany, Japan, the Republic of Korea, and Spain: Antidumping Duty Orders*, 86 Fed. Reg. 66284 (Nov. 22, 2021) (collectively, the *Orders*).

³ See 19 USC 1517(e); see also 19 CFR 165.24.

Period of Investigation

Pursuant to 19 CFR 165.2, entries covered by an EAPA investigation are “those entries of allegedly covered merchandise made within one year before the receipt of an allegation...” Entry is defined as an “entry, or withdrawal from warehouse for consumption, of merchandise into the customs territory of the United States.”⁴ CBP acknowledged receipt of two properly filed allegations against Gorilla Paper on July 8, 2022.⁵ The entries covered by this investigation are those entered for consumption, or withdrawn from warehouse for consumption, from July 8, 2021, through the pendency of this investigation.⁶

Initiation

On July 29, 2022, the Trade Remedy Law Enforcement Directorate (TRLED), within CBP’s Office of Trade, initiated this investigation under EAPA as a result of allegations submitted by the Paper Receipts Converting Association (the Alleger or PRCA)⁷ concerning the evasion of AD or countervailing (CVD) duties by Gorilla Paper.⁸ In the Allegations, the PRCA asserts that Gorilla Paper evaded the *Orders* by importing thermal paper either from Germany or South Korea into the United States that were transshipped through Turkey and misclassified.⁹

Description of the Alleged Transshipment Scheme

The PRCA states that shipping data from Datamyne shows that the Importer imported thermal paper from Dor Etiket San. Ve. Tic . Ltd, Sti (Dor Etiket), Engin Kagit Mamulleri San Tic. Ltd. (Engin Kagit), Umur Basim Sanayi Ve Tic. A.S. (Umur Basim), and Hapag Tarafindan Yapilacaktir identified with country-of-origin (COO) Turkey.¹⁰ The PRCA believes that Dor Etiket and Engin Kagit are the same company because ship manifest data indicates that both companies are located at the same address.¹¹ Additionally, the PRCA claims that shipping data from Datamyne shows that Gorilla Paper imported 65 entries of thermal paper from Turkey into the United States, which totaled 1,344.38 metric tons.¹² The PRCA alleges that Engin Kagit and Umur Basim do not produce thermal paper, but instead purchase jumbo rolls from producers in other countries to convert into smaller thermal paper rolls.¹³

⁴ See 19 USC 1517(a)(4); see also 19 CFR 165.1.

⁵ See email, “Receipt of Properly Filed Allegation 7737,” dated July 8, 2022, and email, “Receipt of Properly Filed Allegation 7738,” dated July 8, 2022.

⁶ See 19 CFR 165.2.

⁷ The Alleger is a trade or business association in which a majority of the members manufacture, produce, or wholesale a domestic like product in the United States; thus, pursuant to 19 CFR 165.1(4), the Alleger meets the definition of an interested party that is permitted to submit an EAPA allegation.

⁸ See CBP Memorandum, “Initiation of Investigation for EAPA Case Number 7737,” dated July 29, 2022, and CBP Memorandum, “Initiation of Investigation for EAPA Case Number 7738,” dated July 29, 2022, (collectively, Initiation Notices).

⁹ See Allegations at 1 and 4-5.

¹⁰ See Allegations at 6.

¹¹ *Id.* at 6 and Exhibit 9.

¹² *Id.*

¹³ *Id.* at 7-8.

For Engin Kagit, the PRCA provides documentation supporting the Allegation that Engin Kagit purchases thermal paper rolls from producers in South Korea.¹⁴ The PRCA supports this claim by providing a screenshot from Engin Kagit's website that shows a statement indicating a partnership between Engin Kagit and Hansol Paper Company (Hansol Paper).¹⁵ Hansol Paper is a producer of thermal paper jumbo rolls in South Korea that is subject to the AD order on thermal paper from South Korea.¹⁶

For Umur Basim, the PRCA provides documentation supporting the Allegation that the shipper Umur Basim purchases thermal paper rolls from producers in Germany.¹⁷ The PRCA provides a screenshot from Umur Basim's website which suggests usage of Blue4est.¹⁸ The PRCA explained that Blue4est is a patented form of thermal paper produced by Papierfabrik August Koehler (Koehler Paper), which is subject to the AD order on thermal paper from Germany.¹⁹ The PRCA reported a screenshot from Koehler Paper's website indicating that Blue4est is a registered trademark.²⁰ The PRCA claims that Umur Basim's usage of Blue4est suggests that Umur Basim sources thermal paper from Germany.

Since both Engin Kagit and Umur Basim are Turkish companies, the Allegor supports the claim that neither Engin Kagit nor Umur Basim produce thermal paper by providing an industry publication from Laves Chemie, a consulting entity that publishes worldwide market studies, which shows that there are no companies producing thermal paper in Turkey.²¹

The PRCA avers that the conversion of jumbo thermal paper rolls into smaller slit rolls, a process that PRCA alleges that Engin Kagit and Umur Basim must do, is a minor operation and does not change the COO.²² The PRCA states that the COO for converted thermal rolls is the COO where the thermal paper was originally produced.²³ To support its claim, the PRCA cites two CBP rulings available on CBP's Customs Rulings Online Search System (CROSS): the 2008 CROSS Ruling N030222 and the 2015 CROSS Ruling N268298; in both instances, CBP determined minor operations of unrolling, slitting, and rerolling do not change the COO of thermal paper from where it was initially produced.²⁴

¹⁴ *Id.* at 7-8 and Exhibit 13.

¹⁵ *Id.* at Exhibit 13.

¹⁶ *Id.* at 7 and Exhibit 1.

¹⁷ *Id.* at 8.

¹⁸ *Id.* at Exhibit 15B.

¹⁹ *Id.* at 8 and Exhibit 1.

²⁰ *Id.* at Exhibit 16.

²¹ *Id.* at 7 and Exhibit 14. Although the Allegor mentions Hapag Tarafından Yapılacaktır (Hapag Tarafından) as a manufacturer that Gorilla Paper purchased from in Turkey, the Allegor does not provide unique evidence about its production capabilities or lack thereof, apart from providing the information that Turkey has no known producers of thermal paper.

²² *Id.* at 8.

²³ *Id.*

²⁴ *Id.* at 8 and Exhibits 17-18.

Therefore, the PRCA concludes *in toto* that all evidence reasonably suggests that Gorilla Paper is transshipping thermal paper from subject countries through Turkey to the United States to avoid paying antidumping duties as per the *Orders*.

Description of the Alleged Misclassification Scheme

In addition to misdeclaring the COO as Turkey rather than Germany or South Korea, as appropriate, the PRCA further alleges that Gorilla Paper has also not been paying the applicable antidumping duties on imports from Engin Kagit and Umur Basim because Gorilla Paper has been entering converted thermal paper into the United States using the wrong Harmonized Tariff Schedule (HTS) numbers.²⁵ The PRCA supports this claim by arguing that the appropriate HTS number for direct thermal paper in rolls, not exceeding 15 centimeters in width, is 4811.90.90.30.²⁶ However, the PRCA claims that when Gorilla Paper imports from Engin Kagit or Dor Etiket, “Gorilla Paper has been using HTS number 4816.90,” which is the HTS code for “carbon paper, self-copy paper and other copy of transfer papers, other.”²⁷ For imports from Umur Basim, the PRCA claims that Gorilla Paper has been using HTS number 4823.90, which is the HTS code for “Other paper, paperboard, cellulose wadding and webs of cellulose fibers, cut to size or shape; Other, Other.”²⁸ To support its allegation that the wrong HTS numbers are being used, the PRCA provides ship manifest documents that suggest that Gorilla Paper has used the wrong HTS numbers in its entries to the United States.²⁹ By misclassifying its entries using the wrong HTS numbers for goods not covered by the scope of the *Orders*, the Allegor asserts that Gorilla Paper was able to evade the payment of antidumping duties.

Therefore, the PRCA concludes that evidence reasonably suggests that Gorilla Paper is misclassifying thermal paper from subject countries as merchandise not covered by the scope of the *Orders* and transshipping the merchandise through Turkey to the United States to avoid paying antidumping duties as per the *Orders*.

Initiation Assessment

TRLED will initiate an investigation if it determines that “{t}he information provided in the allegation ... reasonably suggests that the covered merchandise has been entered for consumption into the customs territory of the United States through evasion.”³⁰ Evasion is defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the

²⁵ See Allegations at 9.

²⁶ *Id.* at 9 and Exhibit 19.

²⁷ *Id.* at 9.

²⁸ *Id.* at 10.

²⁹ *Id.* at 10 and Exhibit 20.

³⁰ See 19 CFR 165.15(b); see also 19 USC 1517(b)(1).

covered merchandise.”³¹ Thus, the allegation must reasonably suggest not only that merchandise subject to an AD and/or CVD order was entered into the United States by the importer through evasion, but that such entry was made by a material false statement or act, or material omission, which resulted in the reduction or avoidance of applicable AD and/or CVD cash deposits or other security.

In assessing the basis for the Allegations, CBP finds that the information submitted by the PRCA reasonably suggests that Gorilla Paper entered merchandise covered by the *Orders* into the customs territory of the United States through evasion. Specifically, data reasonably available to the PRCA and submitted to CBP show Engin Kagit and Umur Basim specifically imported thermal paper subject to the *Orders* into Turkey from Germany and South Korea. Engin Kagit’s and Umur Basim’s own company information shows that the two companies offer converted thermal paper products.³² The Allegor provides evidence that there is no known thermal paper production in Turkey. If there is no known thermal paper production in Turkey, then it is reasonable to infer that manufacturers in Turkey simply convert jumbo thermal paper rolls produced outside of Turkey into smaller thermal paper rolls. Such conversion involves only minor operations and is distinct from thermal paper production. As previously discussed, two CBP rulings on CROSS determined minor operations do not change the COO of thermal paper from where it was initially produced. Even if there are thermal roll conversion processes available from Engin Kagit and Umur Basim, the COO for such goods does not change and, thus, the *Orders* would still be applicable to any thermal rolls produced in Germany or South Korea and imported to Turkey for conversion. Furthermore, commercial trade data show that Gorilla Paper imported thermal paper from Engin Kagit and Umur Basim in Turkey into the United States. Finally, the Allegor provided ship manifest data evidencing that Gorilla Paper may have used the wrong HTS numbers for imports from Engin Kagit, Dor Etiket, and Umur Basim.³³ Consequently, TRLED initiated investigations pursuant to 19 USC 1517(b)(1) and 19 CFR 165.15.³⁴

Interim Measures

Not later than 90 calendar days after initiating an investigation under EAPA, TRLED will decide based on the record of the investigation if there is reasonable suspicion that merchandise covered by the *Orders* was entered into the United States through evasion. If reasonable suspicion exists, CBP will impose interim measures pursuant to 19 USC 1517(e) and 19 CFR 165.24. As explained below, CBP is imposing interim measures because there is a reasonable suspicion that the importer entered covered merchandise into the United States through evasion by means of transshipment through Turkey and/or by misclassification.³⁵

³¹ See 19 CFR 165.1; see also 19 USC 1517(a)(5)(A).

³² See Allegations at Exhibit 13 and Exhibit 15B.

³³ *Id.* at 9 and Exhibit 20.

³⁴ See 19 CFR 165.15(d)(2). See Initiation Notices.

³⁵ See 19 CFR 165.24(a).

Cargo Exam

CBP examined entry [#]4969. Gorilla Paper was the importer for this entry and Dor Etiket was listed as the manufacturer. Based on the cargo exam, CBP determined that the entirety of the product in the entry, as identified on invoice [#], thermal roll [description] was misclassified under HTS 4816.90.0100 (carbon paper, self-copy paper and other copying or transfer papers (other than those of heading 4809), duplicator stencils and offset plates, of paper, whether or not put up in boxes: Other). CBP determined that the thermal rolls included in this entry are more appropriately classified under 4811.90.8030 (Other paper, paperboard, cellulose wadding and webs of cellulose fibers: In strips or rolls of a width exceeding 15 cm or in rectangular (including square) sheets with one side exceeding 36 cm and the other side exceeding 15 cm in the unfolded state: Weighing over 30 g/m² Direct thermal coated paper); therefore, the paper rolls are covered by the scope of the *Orders*.³⁶ In response to the cargo exam, CBP issued three CBP Form-29 Notices of Action for the importer to remedy the misclassification.

CBP Form 28 (CF-28s)

In addition to the misclassification identified during the cargo exam, CBP identified the same pattern of misclassification identified in two of three CBP CF-28s received from Gorilla Paper. On August 5, 2022, and August 9, 2022, as part of the EAPA investigation process, CBP issued three CF-28 Requests for Information to Gorilla Paper concerning entry numbers [#]5222, [#]0669, and [#]1451.³⁷ Gorilla Paper submitted its CF-28 Responses on August 30, 2022, and September 2, 2022.³⁸ In its CF-28 Responses, Gorilla Paper provided information that aligned with the Allegations by indicating it purchased thermal paper that Engin Kagit and Dor Etiket sourced from South Korea³⁹ and Umur Basim sourced from Germany.⁴⁰

South Korea

The CF-28 Responses corroborate that an affiliation exists between Dor Etiket and Engin Kagit because the Dor Etiket CF-28 Response contained South Korean COO documentation and raw

³⁶ See entry summary documents for entry [#]4969.

³⁷ See CF-28 for entry [#]0669 sent to Gorilla Paper, dated August 5, 2022 (CF-28 No. 1); CF-28 for entry [#]1451 sent to Gorilla Paper, dated August 9, 2022 (CF-28 No. 2); and CF-28 for entry [#]5222 sent to Gorilla Paper, dated August 9, 2022 (CF-28 No. 3).

³⁸ See Gorilla Paper Response to CF-28 for manufacturer Dor Etiket, Entry [#]5222, filed August 30, 2022 (dated August 11, 2022) (Dor Etiket CF-28 Response); Gorilla Paper Response to CF-28 for manufacturer Engin Kagit, Entry [#]0669, filed August 30, 2022 (August 11, 2022) (Engin Kagit CF-28 Response); and Gorilla Paper Response to CF-28 for manufacturer Umur Basim, Entry [#]1451, filed September 2, 2022 (dated August 11, 2022) (Umur Basim CF-28 Response).

³⁹ See Engin Kagit CF-28 Response and Dor Etiket CF-28 Response.

⁴⁰ See Umur Basim CF-28 Response.

material invoices for Engin Kagit⁴¹ that tie to other corresponding Dor Etiket sales documentation, such as a sales invoice.⁴²

Gorilla Paper claimed that Engin Kagit and Dor Etiket produced the thermal paper it exported to the United States by providing a Turkish COO certificate.⁴³ However, in both the Engin Kagit CF-28 Response and the Dor Etiket CF-28 Response, Gorilla Paper provided information supplied by the manufacturers that a South Korean COO certificate certifying that for invoice [#], Engin Kagit imported South Korean-origin thermal paper rolls as the raw material inputs.⁴⁴ The COO from South Korea reported in both the Engin Kagit CF-28 Response and the Dor Etiket CF-28 Response is for [#] thermal paper rolls, which ties to the [#] thermal paper rolls on commercial invoice [#] from Hansol Paper to Engin Kagit, demonstrating that Engin Kagit's raw material purchases were shipped from [city], South Korea to Engin Kagit in Turkey.⁴⁵ The invoice is for [#] thermal paper rolls consisting of [list of merchandise

size of jumbo thermal paper rolls.⁴⁷].⁴⁶ This invoice is for rolls with dimensions that are the

Further, Gorilla Paper provided a bill of lading for [#] thermal paper rolls that shows the port of loading is [city], South Korea and the place of delivery is [city], Turkey.⁴⁸ Together, the COO, invoice, and bill of lading indicate that the raw materials are of South Korean origin.

The Engin Kagit CF-28 Response describes an entry imported by Gorilla Paper from manufacturer Engin Kagit⁴⁹ and the Dor Etiket CF-28 Response describes an entry imported by Gorilla Paper from manufacturer Dor Etiket.⁵⁰ Merchandise on invoice [#], between Gorilla Paper and Engin Kagit, consists of thermal rolls [merchandise description], which are within the dimensions of a converted roll covered by the scope of the *Orders*.⁵¹ Similarly, merchandise on invoice [#], between Gorilla Paper and Dor Etiket, consists of thermal rolls [merchandise description], which are within the dimensions of a converted roll covered by the scope of the *Orders*.⁵² As such, the two invoices indicate that Gorilla Paper imported thermal paper rolls in converted roll sizes covered by the scope of the *Orders* from Engin Kagit and Dor Etiket. Moreover, pictures of the

⁴¹ See Dor Etiket CF-28 Response at PDF pages 24-26.

⁴² See Dor Etiket CF-28 Response at PDF pages 5-6.

⁴³ See Engin Kagit CF-28 Response at PDF page 9. See also Dor Etiket CF-28 Response at PDF page 9.

⁴⁴ See Engin Kagit CF-28 Response at PDF page 24. See also Dor Etiket CF-28 Response at PDF page 26.

⁴⁵ See Engin Kagit CF-28 Response at PDF page 22. See also Dor Etiket CF-28 Response at PDF page 24.

⁴⁶ See Engin Kagit CF-28 Response at PDF page 23. See also Dor Etiket CF-28 Response at PDF page 24.

⁴⁷ See Allegations at Exhibit 1.

⁴⁸ See Engin Kagit CF-28 Response at PDF page 25. See also Dor Etiket CF-28 Response at PDF page 27.

⁴⁹ See Engin Kagit CF-28 Response at PDF page 4.

⁵⁰ See Dor Etiket CF-28 Response at PDF page 4.

⁵¹ See Engin Kagit CF-28 Response at PDF pages 5 and 29.

⁵² See Dor Etiket CF-28 Response at PDF pages 5 and 31.

production process from the CF-28 Responses show that Engin Kagit's and Dor Etiket's production process consists of jumbo rolls of thermal paper going through a slitting process and then being rerolled into smaller rolls, before packaging and shipping.⁵³ Since the raw material invoices demonstrate that Engin Kagit imported jumbo size thermal paper rolls from a manufacturer and company (*i.e.*, Hansol Paper in South Korea) subject to the *Orders*, the production process shows that jumbo rolls are slit into smaller converted rolls, and the entries show that Gorilla Paper imported converted thermal paper rolls into the United States from Dor Etiket and Engin Kagit, CBP finds that there is reasonable suspicion that Gorilla Paper transshipped thermal paper rolls subject to the *Orders* through Turkey.

As such, for these reasons and due to the information provided in the Allegations, *i.e.*, 2008 CROSS Ruling N030222 and 2015 CROSS Ruling N268298, CBP finds that the minor processing of thermal paper by Engin Kagit and Dor Etiket in Turkey, as described by Gorilla Paper in its CF-28 Responses above, does not change the COO of the thermal paper being purchased from COO Korea to COO Turkey. As a result, CBP determines that Gorilla Paper has imported thermal paper products into the United States that are of South Korean origin and, thus, subject to the *Orders*.

Besides evidence of transshipment, there is also evidence of misclassification. The entry summary documents in both CF-28 Responses show that Gorilla Paper imported merchandise classified as 4816.90.0100, *i.e.*, carbon paper.⁵⁴ While the merchandise is classified as carbon paper, the merchandise is routinely labeled or described as "thermal paper" throughout the sales documents including in the entry summary,⁵⁵ commercial invoices to Gorilla Paper,⁵⁶ bills of lading,⁵⁷ Turkish COO,⁵⁸ and purchase orders.⁵⁹

The CF-28 Responses show a pattern of labeling merchandise "thermal paper" while classifying it as carbon paper; the same pattern also appears in the cargo exam results, as presented above. The results of the cargo exam for entry number [#]4969, where the entered merchandise was also classified as 4816.90.0100, *i.e.*, carbon paper, demonstrated that the merchandise was thermal paper.⁶⁰ Since the results of the cargo exam confirm that thermal paper rolls were misclassified as carbon paper, CBP also finds that there is reasonable suspicion Gorilla Paper misclassified its importations of thermal paper rolls.

⁵³ See Engin Kagit CF-28 Response at PDF page 18. See also Dor Etiket CF-28 Response at PDF page 20.

⁵⁴ See Engin Kagit CF-28 Response at PDF page 4. See also Dor Etiket CF-28 Response at PDF page 4.

⁵⁵ See Dor Etiket CF-28 Response at PDF page 4.

⁵⁶ See Engin Kagit CF-28 Response at PDF page 5 and Dor Etiket CF-28 Response at PDF page 5.

⁵⁷ See Engin Kagit CF-28 Response at PDF page 7 and Dor Etiket CF-28 Response at PDF page 7.

⁵⁸ See Engin Kagit CF-28 Response at PDF page 9 and Dor Etiket CF-28 Response at PDF page 9.

⁵⁹ See Engin Kagit CF-28 Response at PDF page 10 and Dor Etiket CF-28 Response at PDF page 10.

⁶⁰ See Cargo Exam Results.

Germany

The Umur Basim CF-28 Response shows that Gorilla Paper entered thermal coated paper, manufactured by Umur Basim and classified as 4811.90.8030 (*i.e.*, direct thermal coated paper), into the United States.⁶¹

Gorilla Paper claimed that Umur Basim produced the thermal paper it exported to the United States by providing a Turkish COO certificate for invoice [#].⁶² The invoice contains line items for [merchandise descriptions

].⁶³ The invoice, between buyer Gorilla Paper and manufacturer Umur Basim, demonstrates that the dimensions of the thermal paper rolls imported by Gorilla Paper from Umur Basim are within the range of dimensions of converted rolls that are covered by the scope of the *Orders*.

Gorilla Paper provided invoices detailing Umur Basim's raw material purchases.⁶⁴ The Umur Basim CF-28 Response contains four raw material invoices, two from Koehler Paper in Germany and two from [company] in [country]. There is no antidumping duty order on thermal paper from [country]. That said, given the analysis herein, reasonable suspicion still supports initiation of the investigation and the application of interim measures to Gorilla Paper's entries of thermal paper exported from Turkey which originated in Germany.

Invoice [#] from Koehler Paper SE (Koehler Paper) in Germany describes [#] rolls of merchandise designated as HTS code [#] (*i.e.*, carbon paper); [#] rolls of merchandise designated as HTS code [#] (*i.e.*, carbon paper); and [#] rolls of merchandise designated as HTS code [#] (*i.e.*, carbon paper).⁶⁵

Merchandise on raw material invoice [#] from Koehler Paper consists of [#] rolls designated as HTS code [#] with [merchandise characteristics]; [#] rolls of merchandise designated as HTS code [#] with [merchandise characteristics]; and [#] rolls of merchandise designated as HTS code [#] with [merchandise characteristics]

].⁶⁶ The dimensions for these rolls match the dimensions of converted rolls as covered by the scope in the *Orders*. The merchandise is classified on the invoice with headings and subheadings (*i.e.*, 4811.90) that match the headings and subheadings used for

⁶¹ See Umur Basim CF-28 Response at PDF page 4.

⁶² *Id.* at PDF page 9.

⁶³ *Id.* at PDF page 5.

⁶⁴ *Id.* at PDF page 78.

⁶⁵ *Id.* at PDF page 79.

⁶⁶ *Id.* at PDF page 86.

thermal paper in the scope of the *Orders* (i.e., 4811.90.9030 and 4811.90.8030). Further, the merchandise is labeled “thermal paper” on the invoice.

Since the merchandise on this raw materials invoice is 1) classified with HTS numbers subject to the scope of the *Orders*; 2) fits within the dimensions of merchandise covered by the scope of the *Orders*; and 3) is sourced from Koehler Paper in Germany which is covered by the *Orders*, reasonable suspicion exists that Umur Basim sourced and used certain raw materials that are subject to the *Orders* in the end product that was imported by Gorilla Paper to the United States. Since the thermal paper rolls purchased by Umur Basim from Koehler Paper are converted roll sizes, and since Gorilla Paper imported thermal paper converted rolls from Umur Basim, CBP finds that reasonable suspicion exists that converted thermal paper rolls from Germany were entered with a Turkish COO when the COO should have been designated as Germany.

Finally, a brochure of Umur Basim’s production process from the CF-28 Response shows that Umur Basim has paper converting lines and converting machines.⁶⁷ Because there are German-origin raw materials and Umur Basim has converting machines, it is likely that Gorilla Paper has imported German-origin jumbo thermal paper rolls that were converted in Turkey into the United States.

As such, for these reasons and due to the information provided in the Allegations, i.e., 2008 CROSS Ruling N030222 and 2015 CROSS Ruling N268298, which establishes minor processing does not change the COO of the thermal paper being purchased to the COO in which merchandise underwent minor processing, CBP finds reasonable suspicion that merchandise covered by the *Orders* was transshipped via Turkey, as described by Gorilla Paper in its CF-28 Response above. Any minor processing would not change the COO from Germany to Turkey.

As a result, CBP determines that Gorilla Paper has imported to the United States thermal paper converted products that are of German origin and, thus, covered by the scope of the *Orders*.

Consolidation of the Investigations:

CBP is consolidating EAPA investigations 7737 and 7738 on Gorilla Paper into a single investigation. The new consolidated case number will be EAPA Consolidated Case 7737, and a single administrative record will be maintained. At its discretion, CBP may consolidate multiple allegations against one or more importers into a single investigation, pursuant to 19 CFR 165.13(b), which stipulates that the factors that CBP may consider in consolidating multiple allegations include, but are not limited to, whether the multiple allegations involve: 1) relationships between the importers; 2) similarity of covered merchandise; 3) similarity of AD/CVD orders; and 4) overlap in time periods of entries of covered merchandise.⁶⁸ In these investigations, Gorilla Paper is alleged to be entering merchandise that is subject to the AD orders on thermal paper from Germany and/or South Korea.⁶⁹ In addition, Gorilla Paper’s

⁶⁷ *Id.* at PDF pages 26, 30, and 56.

⁶⁸ *See also* 19 USC 1517(b)(5).

⁶⁹ *See* Allegations at 6-8 and Exhibits 14 and 19.

entries that are alleged to be from Germany and/or South Korea and transshipped through Turkey fall within a similar period of investigation.⁷⁰ Moreover, Gorilla Paper is alleged to import thermal paper produced in Germany or South Korea and then transshipped through Turkey using Dor Etiket, Engin Kagit, or Umur Basim; merchandise from the producers Dor Etiket and Engin Kagit is also misclassified when imported to the United States.⁷¹ Because factors warranting consolidation are present in these investigations, CBP is consolidating them and is providing notice pursuant to 19 CFR 165.13(c). We note that the deadlines for the consolidated investigation will be set from the date of initiation of EAPA case 7737 and 7738, which is July 29, 2022.

Enactment of Interim Measures

Based on the record evidence described above, CBP has determined that reasonable suspicion exists that thermal paper produced by Engin Kagit and Dor Etiket and entered into the customs territory of the United States by Gorilla Paper has been transshipped from South Korea and misclassified, and thus, such goods were entered in evasion of the *Orders*. Additionally, based on the record evidence described above, CBP has determined that reasonable suspicion exists that thermal paper produced by Umur Basim and entered into the customs territory of the United States by Gorilla Paper has been transshipped from Germany, and thus, such goods were entered in evasion of the *Orders*. Therefore, TRLED is imposing interim measures pursuant to this investigation.⁷² Specifically, in accordance with 19 USC 1517(e)(1)-(3), CBP shall:

- (1) suspend the liquidation of each unliquidated entry of such covered merchandise that entered on or after July 29, 2022, the date of the initiation of the investigation;
- (2) pursuant to the Commissioner's authority under section 1504(b) of this title, extend the period for liquidating each unliquidated entry of such covered merchandise that entered before the date of the initiation of the investigation; and
- (3) pursuant to the Commissioner's authority under section 1623 of this title, take such additional measures as the Commissioner determines necessary to protect the revenue of the United States, including requiring a single transaction bond or additional security or the posting of a cash deposit with respect to such covered merchandise.⁷³

In addition, CBP will require live entry and reject any non-compliant entry summaries, as well as require refiling of entries that are within the entry summary rejection period. CBP will also evaluate Gorilla Paper's continuous bonds to determine sufficiency. Finally, CBP may pursue additional enforcement actions, as provided by law, consistent with 19 USC 1517(h).

⁷⁰ *Id.*

⁷¹ *Id.*

⁷² See 19 USC 1517(e); see also 19 CFR 165.24. At this time, there is no evidence to warrant imposing interim measures on shipments from Hapag Tarafindan; CBP may continue to investigate all manufacturers in Turkey mentioned in this notice, but will only apply interim measures to Gorilla Paper shipments from Engin Kagit, Dor Etiket, and Umur Basim.

⁷³ See also 19 CFR 165.24.

Any future submissions or factual information that you submit to CBP pursuant to this EAPA investigation must be made electronically using EAPA's case management system (CMS) at <https://eapallegations.cbp.gov/>. Please provide a business confidential and public version to CBP and serve the public version on the parties to this investigation (*i.e.*, to the parties identified at the top of this notice). Public versions of administrative record documents will be available via the EAPA Portal at <https://eapallegations.cbp.gov/>.⁷⁴

Should you have any questions regarding this investigation, you may contact us at eapallegations@cbp.dhs.gov and Stephanie.L.Berger@cbp.dhs.gov with "EAPA Cons. Case 7737" in the subject line of your email. Additional information on this investigation, including the applicable statute and regulations, may be found on CBP's website at: <https://www.cbp.gov/trade/trade-enforcement/tftea/eapa>.

Sincerely,

A handwritten signature in black ink, appearing to read "Brian M. Hoxie".

Brian M. Hoxie
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

⁷⁴ See 19 CFR 165.4; *see also* 19 CFR 165.23(c) and 19 CFR 165.26.